

THE CONSUMER PROTECTION ACT, 2019

STATUTORY PROVISIONS (INDIA CODE OFFICIAL COMPILATION)

2(7). "consumer" means any person who—(i) buys any goods for a consideration which has been paid or promised or partly paid and partly promised, or under any system of deferred payment and includes any user of such goods other than the person who buys such goods for consideration paid or promised or partly paid or partly promised, or under any system of deferred payment, when such use is made with the approval of such person, but does not include a person who obtains such goods for resale or for any commercial purpose; or (ii) hires or avails of any service for a consideration which has been paid or promised or partly paid and partly promised, or under any system of deferred payment and includes any beneficiary of such service other than the person who hires or avails of the services for consideration paid or promised, or partly paid and partly promised, or under any system of deferred payment, when such services are availed of with the approval of the first mentioned person, but does not include a person who avails of such service for any commercial purpose; ~~Explanation.—For the purposes of this clause, "commercial purpose" does not include use by a person of goods bought and used by him exclusively for the purpose of earning his livelihood, by means of self-employment; the provisions "buys any goods" and "hires or avails any service" include offline and online transactions through electronic means or by tele-shopping or direct selling or multi-level marketing.~~

2(9). "consumer rights" means the rights conferred on consumers by or under this Act, including the right to be protected against the marketing of goods, products or services which are hazardous to life and property; the right to be informed about the quality, quantity, potency, purity, standard and the price of goods, products or services, as the case may be, in order to protect the consumer against unfair trade practices; (iv) the right to be assured, wherever he or she purchases goods or services, that the goods or services offered to him are of standard quality; and (v) the right to be heard and to be assured that consumer's interests will be protected against unfair trade practice or restrictive trade practices or unscrupulous exploitation of consumers; and (vi) the right to consumer awareness.

2(10). "defect" means any fault, imperfection or shortcoming in the quality, quantity, potency, purity or standard which is required to be maintained by or under any law for the time being in force or under any contract, express or implied or as is claimed by the trader in any manner whatsoever in relation to any goods or product and the expression "defective" shall be construed accordingly.

2(11). "deficiency" means any fault, imperfection, shortcoming or inadequacy in the quality, nature and manner of performance which is required to be maintained by or under any law for the time being in force or has been undertaken to be performed by a person in pursuance of a contract or otherwise in relation to any service and includes—(i) any act of negligence or omission or commission by such person which causes loss or injury to the consumer; and (ii) deliberate withholding of relevant information by such person to the consumer.

2(47). "unfair trade practice" means a trade practice which, for the purpose of promoting the sale, use or supply of any goods or for the provision of any service, adopts any unfair method or unfair or deceptive practice including any of the following practices, namely:—(i) making any statement, whether orally or in writing or by visible representation including by means of electronic record, which falsely represents that the goods are of a particular standard, quality, quantity, grade, composition, style or model; falsely represents that the services are of a particular standard, quality or grade; falsely represents any re-built, second-hand, renovated, reconditioned or old goods as new goods; represents that the goods or services have sponsorship, approval, performance, characteristics, accessories, uses or benefits which such goods or services do not have.

34. Jurisdiction of District Commission.?(1) Subject to the other provisions of this Act, the District Commission shall have jurisdiction to entertain complaints where the value of the goods or services paid as consideration does not exceed fifty lakh rupees: Provided that where the Central Government deems it necessary so to do, it may prescribe such other value, as it deems fit. (2) A complaint shall be instituted in a District Commission within the local limits of whose jurisdiction,?(a) the opposite party or each of the opposite parties, where there are more than one, at the time of the institution of the complaint, ordinarily resides or carries on business or has a branch office or personally works for gain; or (b) any of the opposite parties, where there are more than one, at the time of the institution of the complaint, actually and voluntarily resides, or carries on business or has a branch office, or personally works for gain; or (c) the cause of action wholly or in part arises; or (d) the complainant resides or personally works for gain. (3) A complaint in relation to any goods sold or delivered or any service provided or agreed to be provided, may be filed with a District Commission by?(a) the consumer?(i) to whom such goods are sold or delivered or agreed to be sold or delivered or such service is provided or agreed to be provided; or (ii) who alleges unfair trade practice in respect of such goods or service; (b) any recognised consumer association, whether the consumer to whom the goods sold or delivered or agreed to be sold or delivered or service provided or agreed to be provided, or in respect of whom any unfair trade practice has been adopted, is a member of such association or not; (c) one or more consumers, where there are numerous consumers having the same interest, with the permission of the District Commission, on behalf of or for the benefit of all consumers so interested; or (d) the Central Government, the Central Authority and the State Government as the case may be. (4) Where the District Commission is satisfied that the goods complained against under the Act are defective specified in the complaint, or that any of the allegations contained in the complaint about the services or any unfair trade practices, or claims for product liability are proved, it shall issue an order to the opposite party directing him to do one or more of the following things, namely:?(a) to remove the defect pointed out by the appropriate laboratory from the goods in question; (b) to replace the goods with new goods of similar description which shall be free from any defect; (c) to return to the complainant the price, or, as the case may be, the charges paid by the complainant along with such interest on such price or charges as may be decided; (d) to pay such amount as may be awarded by it as compensation to the consumer for any loss or injury suffered by the consumer due to the negligence of the opposite party; (e) to pay such amount as may be awarded by it as punitive damages in respect of circumstances as it deems fit; (f) to remove the defects in goods or deficiencies in the services in question; (g) to discontinue the unfair trade practice or restrictive trade practice or product liability; (h) to issue directions or orders or to issue orders or directions to the opposite party to cease manufacture of hazardous goods or to cease offering services which are hazardous in nature; (i) to withdraw the hazardous goods from being offered for sale; (j) to cease manufacture of hazardous goods and to desist from offering services which are hazardous in nature; (k) to pay such sum may be determined by it for product liability action.

86. Liability of product seller. ?A product seller who is not a product manufacturer shall be liable in a product liability action, if?(a) he has exercised substantial control over the designing, testing, manufacturing, packaging or labelling of a product that caused harm; or (b) he has altered or modified the product and such alteration or modification was the substantial factor in causing the harm; or (c) he has made an express warranty with respect to the product independent of any express warranty made by a manufacturer and such product failed to conform to the express warranty made by the product seller, which caused the harm; or (d) the product has been sold by him and the identity of product manufacturer of such product is not known, or if known, the service of notice or process or warrant cannot be effected on him or he is not subject to the law which is in force in India or the order, if any, passed or to be passed cannot be enforced against him; or (e) he failed to exercise reasonable care in assembling, inspecting or maintaining such product or he did not pass on the warnings or instructions of the product manufacturer regarding the dangers involved or how to avoid such dangers, relating to the product while selling such product and such failure was the proximate cause of the harm.